

25SMCV06527 25SMCV06527

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-08-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C08%2F04%2F2026

Source SHA-256: ccfa141ff8ec22ce36d51f05371621fa0c6dce0078343c72b6f2eec1a7e10ee2

Case Number: 25SMCV06527 Hearing Date: August 4, 2026 Dept: N

TENTATIVE RULING

Plaintiffs Deborah Hodges and Eve Perez's Application of David E. Gevertz to Appear as Counsel Pro Hac Vice is GRANTED.

Plaintiffs Deborah Hodges and Eve Perez's Application of Kyle D. Brumbaught to Appear as Counsel Pro Hac Vice is GRANTED.

Defendant High Rise Financial LLC's Motion for Reconsideration of Order Denying Motion to Dismiss or Stay for Forum Non Conveniens is DENIED.

Moving parties to give notice.

REASONING

Plaintiffs Deborah Hodges and Eve Perez's Application of David E. Gevertz to Appear as Counsel Pro Hac Vice and Plaintiffs Deborah Hodges and Eve Perez's Application of Kyle D. Brumbaught to Appear as Counsel Pro Hac Vice

Counsel who are not active members of the California State Bar and have not been granted permission to appear pro hac vice are prohibited from representing a party in California courts. (*Gentis v. Safeguard Bus. Systems, Inc.* (1998) 60 Cal.App.4th 1294, 1308.) Counsel licensed in another state may, in the court's discretion, be permitted to appear as counsel pro hac vice if counsel is associated with an attorney of record who is an active member of the California bar. (Cal. Rules of Court, rule 9.40(a).) Appearance pro hac vice is a privilege and not a right under the United States Constitution. (*Leis v. Flynt* (1979) 439 U.S. 438, 441.)

An application to appear in California as counsel pro hac vice must state:

(1) The applicant's residence and office address;

(2) The courts to which the applicant has been admitted to practice and the dates of admission;

(3) That the applicant is a member in good standing in those courts;

(4) That the applicant is not currently suspended or disbarred in any court;

(5) The title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and

(6) The name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

(Cal. Rules of Court, rule 9.40(d).)

David E. Gevertz and Kyle D. Brumbaugh represent that they are members in good standing of all bars and with all courts in which they are admitted to practice, Kyle D. Brumbaugh has not appeared in any other actions in California in the preceding two years, and while David E. Gevertz has appeared in one other action in the preceding two years, this is not so many applications as to indicate that he has exceeded what is proper under pro hac vice regulations. They have met the requirements of California Rules of Court, rule 9.40(d), they appear qualified and ready to appear pro hac vice, and there are no other facts or circumstances to show that their appearance in this action would cause a significant disruption of orderly justice. Accordingly, Plaintiffs Deborah Hodges and Eve Perez's Application of David E. Gevertz to Appear as Counsel Pro Hac Vice and Plaintiffs Deborah Hodges and Eve Perez's Application of Kyle D. Brumbaugh to Appear as Counsel Pro Hac Vice are GRANTED.

Defendant High Rise Financial LLC's Motion for Reconsideration of Order Denying Motion to Dismiss or Stay for Forum Non Conveniens

Defendant High Rise Financial LLC ("Defendant") moves the Court for an order reconsidering the Court's April 8, 2026 order denying Defendant's Motion to Dismiss or Stay Action for Forum Non Conveniens. Defendant argues that new facts support reconsidering the order; specifically, Defendant points to a filing by Plaintiff Eve Perez in a pleading in United States District Court for the Eastern District of Tennessee stating that she "does not oppose a stay in favor of arbitration" of her dispute with Defendant, thereby negating the Court's basis for denying the motion, as there will not be two nearly identical trials in two different states because Perez cannot and will not litigate in any courtroom.

Code of Civil Procedure section 1008, subdivision (a), allows a Court to reconsider a prior order as follows:

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

In the Court's order denying Defendant's motion to dismiss or stay this action for forum non conveniens reasons, the Court considered whether the alternate forum, here, Kentucky or Tennessee, was a suitable place for trial, and if it was, whether the private interests of the litigations and the interests of the public in retaining the action for trial in California. Hodges is a resident of Kentucky, and Perez is a resident of Tennessee, and the agreement between each plaintiff and Defendant stated that the parties consent to jurisdiction in Kentucky or Tennessee, respectively. However, the Court noted that moving this action to Kentucky or Tennessee would require each other plaintiff to submit to jurisdiction in another states, which they had not indicated they would not do, and this weighed heavily against litigating this action outside of California, as Plaintiffs' claims would be split, thus requiring two nearly identical trials in two different states. Witnesses would have to participate in two actions, which is of particular concern where some witnesses may not be willing to participate and must be compelled to do so, particularly where the witnesses may be based in California, as Defendant is a California resident. Moreover, Plaintiffs'

claims asked the trier of fact to determine whether Defendant violated California law, and the communities of potential jurors in Kentucky and Tennessee have little concern over such a question. For these reasons, the Court found that both the private and public interest factors weighed in favor of litigating this action in California, and it was not clear that there is a single state that could hear this action given the jurisdictional issues.

Defendant now argues that Perez's statement in a Tennessee filing that she did not oppose a stay of that action in favor of arbitration eliminates the Court's "sole basis for denying the original motion," that basis being that there would be two nearly identical trials in two different states if the Court were to grant Defendant's motion to dismiss. However, it is not clear to the Court why an agreement to arbitrate should cause the Court to reconsider its prior order. Put simply, the Court did not consider any arbitration agreement in ruling on the motion to dismiss or stay, and it was Defendant's responsibility to ask the Court to consider the effects of arbitration or an arbitration agreement if it would have been dispositive. The arbitration agreement is not new even if Perez's statement is, and it is well established that "[the burden under [Code of Civil Procedure] section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial." (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213.) Defendant simply chose not to raise the issue of arbitration with the prior motion. A motion for reconsideration is not a chance to raise a new argument after other arguments failed, thereby giving a party a second bite at the proverbial apple. Moreover, this does not change the Court's conclusion that there was no single state that could hear this action, in arbitration or otherwise, and private and public interest factors weighed in favor of litigating this action in California. The Court finds no reason to reconsider its prior order. Accordingly, Defendant High Rise Financial LLC's Motion for Reconsideration of Order Denying Motion to Dismiss or Stay for Forum Non Conveniens is DENIED.